

Court No. - 3

Case :- WRIT - C No. - 16640 of 2021

Petitioner :- Amit Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mangal Rai, Siddharth Niranjana, Sr. Advocate
Shri Dharampal Singh

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Notice of the petition has been served upon Ms. Arti Raje,
today.

Put up this case on 03.08.2021 as fresh showing the name of
Ms. Arti Raje as counsel for the respondent no. 3.

Order Date :- 27.7.2021

Saurabh

Court No. - 3

Case :- WRIT - C No. - 16640 of 2021

Petitioner :- Amit Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mangal Rai, Siddharth Niranjana, Sr.
Advocate Shri Dharampal Singh

Counsel for Respondent :- C.S.C., Arti Raje

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Submission of Shri Dharampal Singh, learned Senior Advocate is that against the provisional assessment order, the petitioner had availed his right to object to the same and that objection has not been decided and no final assessment order has been made. There is no demand, as may be, enforced against the petitioner.

Learned counsel for the power corporation prays for further time to complete her instructions.

Put up this case as fresh on 10.08.2021.

Till the next date of listing, no coercive measure shall be adopted against the petitioner.

Order Date :- 3.8.2021

Saurabh

Court No. - 3

Case :- WRIT - C No. - 16640 of 2021

Petitioner :- Amit Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Mangal Rai, Siddharth Niranjana, Sr. Advocate Shri Dharampal Singh

Counsel for Respondent :- C.S.C., Arti Raje

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Sri Dharampal Singh, Senior Advocate assisted by Sri Siddharth Niranjana learned counsel for the petitioner, Smt. Arti Raje, learned counsel for the Corporation and learned Standing Counsel for the respondent - State.

Presently petitioner has challenged the recovery of Rs.7,47,478/- being pressed against the petitioner towards electricity dues.

Submission of learned Senior Counsel for the petitioner is that provisional demand note was served on the petitioner on 24.02.2020. He filed objections thereto in terms of Clause 6.8 of U.P. Electricity Supply Code, 2005 on 06.03.2020 which was well within the period of 15 days. Without deciding the objection, respondents cannot be permitted to enforce recovery proceeding.

Submission appears to well founded in law.

Upon instructions, Smt. Arti Raje, learned counsel for the Corporation states that objection has remained pending due to inadvertence.

Be that as it may, no useful purpose would be served in keeping the present petition pending or calling for a counter affidavit, at this stage.

Accordingly, the writ petition is **disposed of** with a direction to respondent no.3 to proceed and decide the petitioner's objection dated 06.03.2020 as expeditiously as possible, preferably within a period of two months from today. It is further provided that petitioner may file all documentary evidence which may rely on along with copy of this order within a period two weeks from today. Thereupon respondents shall have fixed a date for hearing within a further period of two weeks and decide the same within one month.

For a period of two months or till disposal of objection of the petitioner, whichever is earlier, no coercive measure shall be adopted against the petitioner.

Order Date :- 10.8.2021
A.Kr.